

Part 4

Offences

40. Offences

- (1AA) Any person who knowingly contravenes section 14(1) in respect of building works (other than minor works) or street works shall be guilty of an offence and shall be liable on conviction—
- (a) to a fine of \$400,000 and to imprisonment for 2 years; and
 - (b) to a fine of \$20,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Replaced 20 of 2008 s. 28)*
- (1AB) Any person who commits an offence under section 4A(2) or 9AA(2) shall be liable on conviction to a fine at level 6. *(Added 20 of 2008 s. 28)*
- (1) Any person who contravenes section 21(1) shall be guilty of an offence and shall be liable on conviction— *(Amended 15 of 2004 s. 31)*
- (a) to a fine at level 6 and to imprisonment for 2 years; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Replaced 24 of 1979 s. 3)*
- (1A) Any person who contravenes section 22(2)(a), 24B(14) or 27(5)(a) shall be guilty of an offence and shall be liable on conviction to a fine at level 2 and to imprisonment for 6 months. *(Added 24 of 1979 s. 3. Amended 91 of 1990 s. 6)*
- (1B) Any person who—
- (a) contravenes section 30(1) or 31(1); or

- (b) without reasonable excuse, fails to comply with an order served on him under section 19(2), 20(2), 22(3), 23, 25(2), 26(1), 26A(1) or (3), 27A(1) or (2B), 27C(1) or (4), 28(2)(a) or (3) or (5), 29(2)(a), 29A(2), 30(3) or 31(2)(a), (*Amended 77 of 1992 s. 4; 55 of 1996 s. 9; 15 of 2004 s. 31*)

shall be guilty of an offence and shall be liable on conviction—

- (i) to a fine at level 5 and to imprisonment for 1 year; and
- (ii) in the case of an offence consisting of a failure to comply with an order served on him under section 23, 25(2), 26(1), 26A(1) or (3), 27A(1) or (2B), 27C(1) or (4) or 28(3) or (5) to a further fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the failure to comply with the order has continued. (*Added 24 of 1979 s. 3. Amended 72 of 1980 s. 15; 77 of 1992 s. 4; 55 of 1996 s. 9; 15 of 2004 s. 31*)

(1BA) Any person who, without reasonable excuse, fails to comply with an order served on him under section 24(1) shall be guilty of an offence and shall be liable on conviction—

- (a) to a fine of \$200,000 and to imprisonment for 1 year; and
- (b) to a fine of \$20,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. (*Added 15 of 2004 s. 31*)

(1BB) Any person who, without reasonable excuse, fails to comply with an order served on him under section 24AA(1) shall be guilty of an offence and shall be liable on conviction—

- (a) to a fine at level 5 and to imprisonment for 3 months; and

- (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Added 20 of 2008 s. 28)*
- (1BC) Any person who, without reasonable excuse, fails to comply with a notice served on the person under section 30B(3), (4), (5) or (6) commits an offence and is liable on conviction—
 - (a) to a fine at level 5 and to imprisonment for 1 year; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Added 16 of 2011 s. 28)*
- (1BD) Any person who, without reasonable excuse, fails to comply with a notice served on the person under section 30C(3) or (4) commits an offence and is, subject to subsection (1BE), liable on conviction—
 - (a) to a fine at level 4 and to imprisonment for 3 months; and
 - (b) to a fine of \$2,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Added 16 of 2011 s. 28)*
- (1BE) Before taking court proceedings against a person for an offence under subsection (1BD), the Building Authority must serve on the person a penalty notice described in Schedule 7. *(Added 16 of 2011 s. 28)*
- (1BF) Schedule 7 has effect in relation to a penalty notice. *(Added 16 of 2011 s. 28)*
- (1BG) The Chief Executive in Council may, by notice published in the Gazette, amend Schedule 7. *(Added 16 of 2011 s. 28)*
- (1C) Any person who—
 - (a) without reasonable excuse, fails to comply with an order served on him under section 32(2); or

- (b) contravenes section 24B(8) or 32(3), (*Amended 91 of 1990 s. 6*)

shall be guilty of an offence and shall be liable on conviction to a fine at level 1 and to imprisonment for 6 months. (*Added 24 of 1979 s. 3*)

- (1D) Any owner who—

- (a) fails to serve upon all former occupiers who have notified him of their addresses, the copies required to be served under section 27(10)(a); or
- (b) fails to serve upon the Building Authority the certificate required to be served under section 27(10)(b),

shall be guilty of an offence and shall be liable on conviction to a fine at level 3 and to imprisonment for 6 months. (*Added 45 of 1985 s. 2*)

- (1E) Any person who contravenes section 24B(6) shall be guilty of an offence and shall be liable on conviction to a fine at level 5 and to imprisonment for one year and to a further fine of \$5,000 for each day during which the offence continues. (*Added 91 of 1990 s. 6*)

- (2) Any person who—

- (a) fails to give any notice required to be given under section 25(1); or
- (b) contravenes any condition of a permit granted by the Building Authority under section 42,

shall be guilty of an offence and shall, without prejudice to any other penalty, be liable on conviction to a fine at level 6 and to imprisonment for 2 years. (*Replaced 39 of 2000 s. 6*)

- (2AAA) Any person who obstructs the Building Authority, any officer authorized by him or any other public officer, in the exercise of his power under this Ordinance, shall be guilty of an offence and shall, without prejudice to any other penalty, be liable on conviction to a fine at level 3 and to imprisonment for 6 months. (*Added 39 of 2000 s. 6*)
- (2A) Any person for whom any prescribed inspection or building works or street works are being carried out and any authorized person, registered structural engineer, registered geotechnical engineer, registered inspector, qualified person, registered general building contractor, registered specialist contractor or registered minor works contractor directly concerned with any such inspection or works who— (*Amended 43 of 1993 s. 10; 54 of 1996 s. 22; 15 of 2004 s. 31; 20 of 2008 s. 28; 16 of 2011 s. 28*)
- (a) permits or authorizes to be incorporated in or used in the carrying out of any such inspection or works any materials which— (*Amended 16 of 2011 s. 28*)
 - (i) are defective or do not comply with the provisions of this Ordinance;
 - (ii) have not been mixed, prepared, applied, used, erected, constructed, placed or fixed in the manner required for such materials under this Ordinance;
 - (b) diverges or deviates in any material way from any work shown in a plan approved by the Building Authority under this Ordinance;
 - (ba) diverges or deviates in any material way from any works shown in a plan relating to minor works that is required to be submitted to the Building Authority under the simplified requirements; or (*Added 20 of 2008 s. 28*)

(c) knowingly misrepresents a material fact in any plan, certificate, form, report, notice or other document given to the Building Authority under this Ordinance, *(Replaced 24 of 1979 s. 3. Amended 16 of 2011 s. 28)*

shall be guilty of an offence and shall be liable on conviction— *(Amended 20 of 2008 s. 28)*

(d) in the case of a prescribed inspection (other than a prescribed inspection in respect of a window in a building) or building works (other than minor works) or street works, to a fine of \$1,000,000 and to imprisonment for 3 years; or *(Amended 16 of 2011 s. 28)*

(e) in the case of a prescribed inspection in respect of a window in a building or minor works, to a fine of \$500,000 and to imprisonment for 18 months. *(Amended 24 of 1979 s. 3; 15 of 2004 s. 31; 16 of 2011 s. 28)*

(2AA) Any authorized person, registered structural engineer or registered geotechnical engineer who contravenes section 4(3)(b), or any registered general building contractor or registered specialist contractor who contravenes section 9(5)(b) or (6)(b), shall be guilty of an offence and shall be liable on conviction to a fine of \$250,000: *(Amended 54 of 1996 s. 22; 39 of 2000 s. 6; 15 of 2004 s. 31)*

Provided that it shall be a defence in any prosecution for a contravention of any section referred to in this subsection for the person charged to prove to the satisfaction of the court that he did not know, nor could reasonably have discovered, the contravention referred to in the charge. *(Added 24 of 1979 s. 3)*

- (2AAAA) Any prescribed building professional who contravenes section 4B(2)(c), or any prescribed registered contractor who contravenes section 9AA(4)(b) or (6)(b), shall be guilty of an offence and shall be liable on conviction to a fine at level 5. *(Added 20 of 2008 s. 28)*
- (2AAAB) It is a defence in any prosecution for a contravention of any section referred to in subsection (2AAAA) for the person charged to prove that he had no knowledge of, and could not have reasonably discovered, the contravention referred to in the charge. *(Added 20 of 2008 s. 28)*
- (2AAAC) Any person who contravenes an order made by a disciplinary board under section 7(2)(bb), 7(2)(d), 13(4)(d) or 13(4)(e) shall be guilty of an offence and shall be liable on conviction— *(Amended 16 of 2011 s. 28)*
- (a) to a fine at level 6 and to imprisonment for 6 months; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Added 20 of 2008 s. 28)*
- (2AB) Any person (whether or not an authorized person, a registered structural engineer, a registered geotechnical engineer, a registered general building contractor, a registered specialist contractor or a registered minor works contractor) directly concerned with any building works or street works set out in items 1, 2, 3, 4, 5 and 6 of Column A in the table to section 17(1) who contravenes any condition imposed, or fails to comply with any requirement of an order in writing, under that section in respect of such building works or street works, or the plans thereof, shall be guilty of an offence and shall be liable on conviction— *(Amended 20 of 2008 s. 28)*

- (a) in the case of building works (other than minor works) or street works, to a fine of \$150,000 and to imprisonment for 1 year; or
 - (b) in the case of minor works, to a fine of \$35,000 and to imprisonment for 3 months. (*Added 72 of 1980 s. 15. Amended 54 of 1996 s. 22; 15 of 2004 s. 31*)
- (2AC) Any person (whether or not an authorized person, a registered structural engineer, a registered geotechnical engineer, a registered general building contractor, a registered specialist contractor or a registered minor works contractor) directly concerned with any site formation works, piling works, excavation works or foundation works who contravenes any condition imposed under item 7 in the table to section 17(1) in respect of such works, or the plans thereof, shall be guilty of an offence and shall be liable on conviction— (*Amended 20 of 2008 s. 28*)
 - (a) in the case of site formation works, piling works, excavation works or foundation works (other than minor works), to a fine of \$750,000 and to imprisonment for 3 years; or
 - (b) in the case of site formation works, excavation works or foundation works that are minor works, to a fine of \$350,000 and to imprisonment for 18 months. (*Added 72 of 1980 s. 15. Amended 54 of 1996 s. 22; 15 of 2004 s. 31*)
- (2AD) Any registered inspector who contravenes section 30D(3)(a), or any qualified person who contravenes section 30E(3)(a), or any representative of a qualified person who contravenes section 30E(4)(a), commits an offence and is liable on conviction to a fine of \$250,000. (*Added 16 of 2011 s. 28*)

- (2AE) Any registered inspector who contravenes section 30D(4)(a), or any qualified person who contravenes section 30E(5)(a), commits an offence and is liable on conviction—
- (a) in the case of supervision of a prescribed repair (other than minor works), to a fine of \$250,000; or
 - (b) in the case of supervision of a prescribed repair that is minor works, to a fine of \$150,000. (*Added 16 of 2011 s. 28*)
- (2AF) Any registered inspector, qualified person, registered general building contractor or registered minor works contractor who contravenes section 30D(4)(c), 30E(5)(c) or 30F, as the case may be, commits an offence and is liable on conviction—
- (a) in the case of a prescribed repair (other than minor works), to a fine of \$1,000,000 and to imprisonment for 3 years; or
 - (b) in the case of a prescribed repair that is minor works, to a fine of \$500,000 and to imprisonment for 18 months. (*Added 16 of 2011 s. 28*)
- (2B) Any person (whether or not an authorized person, a registered structural engineer, a registered geotechnical engineer, a registered inspector, a qualified person, a registered general building contractor, a registered specialist contractor or a registered minor works contractor) directly concerned with any prescribed inspection, site formation works, piling works, foundation works or other form of building works who— (*Amended 54 of 1996 s. 22; 15 of 2004 s. 31; 20 of 2008 s. 28; 16 of 2011 s. 28*)
- (a) carries out or has carried out such inspection or works, or authorizes or permits or has authorized or permitted such inspection or works to be carried out, in such manner that it causes injury to any person or damage to any property; or

- (b) carries out or has carried out such inspection or works, or authorizes or permits or has authorized or permitted such inspection or works to be carried out, in such manner as is likely to cause a risk of injury to any person or damage to any property,

shall be guilty of an offence and shall be liable on conviction— (*Amended 20 of 2008 s. 28*)

- (c) in the case of a prescribed inspection (other than a prescribed inspection in respect of a window in a building), or site formation works, piling works, foundation works or other form of building works (other than minor works), to a fine of \$1,000,000 and to imprisonment for 3 years; or

- (d) in the case of a prescribed inspection in respect of a window in a building, or site formation works, foundation works or other form of building works that are minor works, to a fine of \$500,000 and to imprisonment for 18 months. (*Replaced 24 of 1979 s. 3. Amended 15 of 2004 s. 31; 16 of 2011 s. 28*)

- (2C) Any person who, without reasonable excuse, fails to comply with an order served on him under section 24A, shall be guilty of an offence and shall be liable on conviction—

- (a) in the case of building works (other than minor works) or street works—

- (i) to a fine of \$1,000,000 and to imprisonment for 3 years; and

- (ii) to a fine of \$200,000 for each day during which it is proved to the satisfaction of the court that the offence has continued; or (*Replaced 20 of 2008 s. 28*)

- (b) in the case of minor works—

- (i) to a fine of \$500,000 and to imprisonment for 18 months; and
 - (ii) to a fine of \$100,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Replaced 20 of 2008 s. 28)*

(Added 71 of 1972 s. 5. Amended 24 of 1979 s. 3; 15 of 2004 s. 31)
- (2D) Any person who knowingly misrepresents a material fact in any report submitted to the Building Authority under section 27C(2)(c) shall be guilty of an offence and shall be liable on conviction to a fine of \$250,000 and to imprisonment for 3 years. *(Added 55 of 1996 s. 9)*
- (2E) Where a registered minor works contractor or a registered specialist contractor certifies or carries out minor works belonging to a class, type or item for which he is not registered, he shall be guilty of an offence and shall be liable on conviction—
 - (a) to a fine at level 6 and to imprisonment for 6 months; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Added 20 of 2008 s. 28)*
- (2F) Any person other than a prescribed building professional, who, without reasonable excuse, certifies minor works shall be guilty of an offence and shall be liable on conviction—
 - (a) to a fine at level 6 and to imprisonment for 6 months; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. *(Added 20 of 2008 s. 28)*

- (2G) Any person other than a prescribed registered contractor or a person acting under the supervision of any such contractor, who, without reasonable excuse, certifies or carries out minor works shall be guilty of an offence and shall be liable on conviction—
- (a) to a fine at level 6 and to imprisonment for 6 months; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. (*Added 20 of 2008 s. 28*)
- (2H) Any person other than a registered inspector who, without reasonable excuse, certifies a prescribed inspection (other than a prescribed inspection in respect of a window in a building), or certifies or supervises a prescribed repair (other than a prescribed repair in respect of a window in a building), in respect of a building commits an offence and is liable on conviction—
- (a) to a fine at level 6 and to imprisonment for 6 months; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. (*Added 16 of 2011 s. 28*)
- (2I) Any person other than a qualified person who, without reasonable excuse, certifies a prescribed inspection or certifies or supervises a prescribed repair, in respect of a window in a building commits an offence and is liable on conviction—
- (a) to a fine at level 6 and to imprisonment for 6 months; and
 - (b) to a fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the offence has continued. (*Added 16 of 2011 s. 28*)

- (3) Any person who unlawfully and maliciously removes, pulls down, demolishes or damages, or in any way whatsoever interferes with, any shoring erected for a building pursuant to section 18(1) or any groundwater drainage works carried out pursuant to section 28A shall be guilty of an offence and shall be liable to a fine at level 5 and to imprisonment for 1 year. *(Added 27 of 1964 s. 6. Amended 24 of 1979 s. 3; 41 of 1982 s. 10)*
- (3A) Any person who without reasonable excuse fails to comply with a requirement imposed under section 28A to maintain groundwater drainage works shall be guilty of an offence and shall be liable to a fine at level 5 and imprisonment for 1 year and to a further fine of \$5,000 for each day during which it is proved to the satisfaction of the court that the failure to comply with the requirement has continued. *(Added 41 of 1982 s. 10)*
- (4) Any person who, after a copy of a warrant issued under section 18(6)(c) has been posted in accordance with section 18(6)(d), obstructs the entry to the building specified in such warrant of any police officer or other person authorized by such warrant to enter the same shall be guilty of an offence and shall be liable to a fine at level 5 and to imprisonment for 1 year. *(Added 40 of 1965 s. 7. Amended 24 of 1979 s. 3)*
- (4A) Any person who, after a copy of warrant issued under section 28C has been posted under subsection (2) of that section, obstructs the entry upon the land specified in the warrant by any police officer or other person authorized by the warrant to enter upon the land or obstructs the carrying out or maintenance of any groundwater drainage works by any person authorized by the warrant to carry out or maintain the works shall be guilty of an offence and shall be liable to a fine at level 5 and to imprisonment for 1 year. *(Added 41 of 1982 s. 10)*

- (4B) Any person who without reasonable excuse contravenes section 39B(1) shall be guilty of an offence and shall be liable on conviction to a fine at level 3 and to imprisonment for 6 months. *(Added 15 of 2004 s. 31)*
- (4C) Any person who without reasonable excuse contravenes section 39B(1A) commits an offence and is liable on conviction to a fine at level 4. *(Added 16 of 2011 s. 28)*
- (5) Any person, being a person directly concerned in or with any building works or street works, who permits the commission of any offence specified in this section shall be deemed to be guilty of such offence and shall be liable to the penalty prescribed therefor. *(Replaced 44 of 1959 s. 20. Amended 43 of 1993 s. 10)*
- (6) Where an offence under this Ordinance committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect or default on the part of, any director, manager, or other officer concerned in the management of the body corporate, or any person purporting to act in any such capacity, he, as well as the body corporate, is guilty of the offence. *(Replaced 6 of 1995 s. 5)*
- (6A) Where an offence under this Ordinance committed by a partner in a partnership is proved to have been committed with the consent or connivance of, or to be attributable to any neglect or default on the part of, any other partner of the partnership, that other partner is also guilty of the offence. *(Added 6 of 1995 s. 5)*
- (7) Where anything is required to be done by the owner of a building, and by virtue of section 2 there is more than one owner of such building, it shall be a defence to any charge of failing to do that thing—

- (a) that such thing was done by another owner of the building; or
 - (b) that any notice or order in respect of such thing required under this Ordinance to be served on the owner was served on another owner of the building and not on the person charged.
- (7A) Where anything is required to be done by an owner of land or by a person referred to in section 27A(1), it shall be a defence to any charge of failing to do that thing that any notice or order in respect of such thing required under this Ordinance to be served on the owner or on such person was served on another owner of the land or on another such person and not on the person charged. *(Added 72 of 1980 s. 15)*
- (8) Any prosecution under the provisions of this Ordinance may be commenced within 12 months of the commission of the offence or within 12 months of the same being discovered by or coming to the notice of the Building Authority. *(Added 44 of 1959 s. 20. Amended 68 of 1993 s. 19)*

(Amended 20 of 2008 s. 28)

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